Historical source

Encyclopaedia Britannica scan, source row 1805. Parse 3.5 extracted the text. Super 3.5 VL corrected it from an enlarged crop of each block. It can still contain recognition errors. Page headers, footers, and page numbers are removed.

Untitled continuation (E0151)

Continues an entry from an earlier page.

Execution a criminal, for reviving, was not allowed to take sanctuary and abjure the realm; but his fleeing to sanctuary was held an escape in the officer.

EXECUTION (E0152)

EXECUTION, in the law of Scotland. See Law Index. EXECUTION, in the French music, is used to denote the manner of singing, or of the performance of a song. " As to the manner of singing, called in France execu- tion, no nation may, with any probability dispute it with the French. If the French, by their commerce with the Italians have gained a bolder composition, the Italians have made their advantage of the French, in learning of them a more polite, moving, and exqui- site execution." St Evremond.

EXECUTIVE POWER (E0153)

EXECUTIVE POWER. The supreme executive power of these kingdoms is vested by our laws in a single person, the king or queen for the time being. See the article KING.

The executive power, in this state, hath a right to a negative in parliament, i. e. to refuse assent to any acts offered; otherwise the two other branches of legitimate power would, or might, become despotic.

EXECUTOR (E0154)

EXECUTOR, a person nominated by a testator, to take care to see his will and testament executed or performed, and his effects disposed of according to the tenor of the will. See LAW.

EXECUTOR (E0155)

EXECUTOR, in Scotch Law, signifies either the person entitled to succeed to the movable estate of one deceased, or who by law or special appointment is intrusted with the administration of it.

EXECUTORY (E0156)

EXECUTORY, in Law, is where an estate in fee, that is, made by deed or fine, is to be executed afterwards by entry, livery, or writ. Lease for years, annuities, conditions, &c. are termed inheritances exec- cutory.

EXECUTRY (E0157)

EXECUTRY, in Scots Law, is the moveable estate falling to the executor. Under executry, or movables, is comprehended every thing that moves itself, or can be moved ; such as corns, cattle, furniture, ready money, &c.

EXEDRÆ, in antiquity, denoted halls with many feats, where the philosophers, rhetoricians, and men of learning, met for discourse and disputation. The word occurs in ecclesiastical writers as a general name for such buildings as were distant from the main body of the churches, and yet within the limits of the church taken in its largest sense. Among the exedræ the chief was the BAPTISTERY.

EXEGESIS (E0158)

EXEGESIS, a discourse by way of explanation or comment upon any subject. In the Scotch univerfities, there is an exercise among the ftudents in divinity, called an exegesis, in which a question is stated by the re-fpondent, who is then opposed by two or three other ftudents in their turns; during which time the president moderates, and relves the difficulties which the re-fpondent cannot overcome.

EXEGETES (E0159)

EXEGETES, (formed of , "I explain,") among the Athenians, persons learned in the laws, whom the judges used to consult in capital causes.

EXEGETICA (E0160)

EXEGETICA, in Algebra, the art of finding, either in numbers or lines, the roots of the equation of a problem, according as the problem is either numerical or geometrical.

EXEMPLAR (E0161)

EXEMPLAR, a model, or original, to be imitated, or copied. See Model.

EXEMPLAR also denotes the idea, or image, conceived

formed in the mind of the artist, whereby he con- sists his work. Such is the idea of Cedar, which a painter has in his mind when he goes to make a picture of Cedar. EXEMPLIFICATION of Letters Patent, denotes

EXEMPLIFICATION of Letters Patent, denotes an exemplar, or copy of letters patent, made from the enrolment thereof, and sealed with the great seal of England. Such exemplifications are as effectual to be owed or pleaded, as the letters patent themselves.

EXEMPTION (E0162)

EXEMPTION, in Law, a privilege to be free from some service or appearance : thus, barons and peers of the realm are, on account of their dignity, exempted from being sworn upon inquests ; and knights, clergymen, and others, from appearing at the sheriff's turn. Persons of 70 years of age, apothecaries, &c. are also by law exempted from serving on juries ; and justices of the peace, attorneys, &c. from parochial offices.

EXERCISE (E0163)

EXERCISE, among physicians, such an agitation of the body as produces salutary effects in the animal economy.

Exercise may be said to be either active or passive. The active is walking, hunting, dancing, playing at bowls, and the like; as also speaking, and other labour of the body and mind. The passive is riding in a coach, on horseback, or in any other manner. Exercise may be continued to a beginning of weariness, and ought to be used before dinner in a pure light air; for which reason, journeys, and going into the country, contribute greatly to preserve and re-establish health.

Exercise increases the circulation of the blood, attenuates and divides the fluids, and promotes a regular perspiration, as well as a due secretion of all the humours; for it accelerates the animal spirits, and facilitates their distribution into all the fibres of the body, strengthens the parts, creates an appetite, and helps digestion. Whence it arises, that those who accustom themselves to exercise are generally very robust, and seldom subject to diseases.

Boerhaave recommends bodily exercise in difeases of a weak and lax fibre. By riding on horseback, says his commentator, the pendulous vicera of the abdo- med are shaken every moment, and gently rubbed as it were one against another, while in the mean time the pure air acts on the lungs with greater force. But it is to be observed that a weak man should not ride with a full stomach, but either before dinner, or after the digestion is nearly finished; for when the stomach is distended, weak people do not bear the concussions of the horse without difficulty; but when the prime viae are nearly empty, the remaining faeces are discharged by this concussion. Sailing in a ship is also an exercise of great use to weak people. If the vessel moves with an even motion, by increasing perspiration it usually excites a wonderful alacrity, creates an appetite, and promotes digestion. These exercises are more especially serviceable to weak people; but, in order to strengthen the body by muscular motion, running and bodily exercises are to be used. In these we should begin with the most gentle, such as walking, and increase it by degrees till we come to running. Those exercises of the body are more especially serviceable which give delight to the mind at the same time, as tennis, fencing, &c.; for which reason, the wisdom of antiquity appointed rewards for those who excelled in the gymnastic exercises.

Source record

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